

TENTATIVE RULING

Case: **Vorhees v. Keables et al.**
Case No. CV2026-0216

Hearing Date: **April 1, 2026** **Department Eleven** **9:00 a.m.**

Demurrer:

Respondent Woodland Community Colleges' request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Respondent's demurrer is **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e); *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146 - 1147.) The Court finds that petitioner James Patrick Vorhees' writ of mandate or prohibition ("writ") fails to identify: (1) a relevant legal basis for relief pursuant to Code of Civil Procedure section 1085; or (2) a judicial function as required for relief pursuant to Code of Civil Procedure section 1102; thus, the writ fails to state facts sufficient to constitute any cause of action against respondent. (Code Civ. Proc., §§ 1085, 1102; see *Pearson v. Reed* (1935) 6 Cal.App.2d 277, 287; Writ, ¶ 4.) The Court also notes that the writ is not verified, as required by Code of Civil Procedure section 1103.

The notice of demurrer does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Writ of mandate or prohibition:

Given the Court's ruling on respondent Woodland Community College's demurrer, petitioner James Patrick Vorhees' writ of mandate or prohibition is **DENIED AS MOOT**.

The writ of mandate or prohibition does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.